MARTIN BARRON

Versus

MERY BARRON

AND

SHELLEY KAPUYANYIKA N.O

IN THE HIGH COURT OF ZIMBABWE
MOYO J
BULAWAYO 20 NOVEMBER 2025

S Sephuma, for applicant
J Mugova, for 1st respondent

Opposed application

MOYO J: This is an application for the review of the 2nd respondent's decision (taxing officer) in a bill of costs that were awarded by the court and were sent for taxation by applicant to the 2nd respondent.

The bill of costs was taxed on 28 August 2025. The bill was issued on 5 September 2025 per the stamp. This is an application for review is in terms of Rule 72(26) as its title confirms.

At the hearing of the matter, the 1st respondent raised a preliminary objection to the effect that the matter was not properly before the court as it was filed outside the period permitted by Rule 72(26) but without any condonation having been sought.

Applicant's counsel was of the view that the application is properly before the court

Rule 72(26) provides as follow;

> "A party aggrieved by the decision of a taxing officer may apply to court within fourteen (14) days after the taxation to review such taxation. The application shall be by court application to the taxing officer and the opposite party, if such opposite party was present at the taxation or if the court decides that such opposite party should be represented".

I believe the position by the rule is very clear. Applicant had 14 days to file this application. A counting of 14 days from the 28th of August being the date of taxation (excluding the 28th being the date of taxation), shows that applicant should have filed this application by 17 September 2024.

This application was filed on 25 September 2024 well out of time. Applicant should have sought condonation.

Even if one were to reckon the 14 days from the date of issue of the bill by the taxing officer, which is 5 September 2024, applicant would still be 1 day out of time.

Although I hold the view that the 14 days should be reckoned from the date of taxation as applicant became aware of the issues they had qualms with at the taxation sitting. I hold the view that for that reason applicant was more than a week out of time.

Applicant should have applied for condonation in order to regularize this application. It is for these reasons that the preliminary objection will be upheld.

I will not deal with the preliminary objection of the incomplete application served on 1st respondent as having found that the matter is improperly before me that becomes of no consequence.

The application is accordingly struck off the roll with costs.

Dube, Mguni & Dube, applicant's legal practitioners
Titan Law Chambers, 1st respondent's legal practitioners